

Scope of Work
Dated 13 August 2025
BRL Tower Bridge and Wing Wall Sealing
U.S. Army Corps of Engineers
Barren River Lake
11088 Finney Rd.
Glasgow, KY 42141

TP-1.1 GENERAL:

a. **Description.** The contractor shall furnish all materials, supplies, tools, parts, equipment, transportation, labor, supervision, communication, and quality control to complete the work listed below, at the areas specified at Barren River Lake, located in Barren and Allen Counties, Kentucky.

b. Work shall be provided in accordance with all Terms, Conditions, General, Specific and Technical Provision, Exhibits, Attachments, Drawings, etc. contained herein or incorporated by Reference. All distances and measurements given are approximate. Each interested contractor is urged to visit the job site to assess quantities, critical dimensions, and work conditions. All work will be done according to standard industry practices. Access to the work area is controlled and appointments to look at the site shall be coordinated with the Technical Representative. This includes all mandatory provisions of the Federal Acquisition Regulation (FAR), whether referenced or not, current at time of award.

c. **Contractor Responsibility.** Contractor's work and responsibility shall include but are not limited to supply of equipment/materials, all planning, programming, administration, management, supervision, and inspection required to assure all equipment/materials are acquired and work is conducted in accordance with the contract and all applicable laws, regulations, or directives. The Contractor shall ensure all work meets or exceeds specifications. The prime Contractor shall be responsible for ensuring all subcontractors comply with the provisions of this contract.

d. **Performance Required.** Special consideration of the Contractor is directed to the fact that required accuracy, thoroughness, safety, and progress of this work are essential to the intended purpose. The contractor must be cognizant of the difficulties involved and of the contingencies which may arise, and must make certain that their personnel, equipment, transportation facilities and supply of materials are adequate at all times to ensure complete compliance with all provisions of these specifications. The work shall be done under professional supervision by competent employees. All contract work shall be in accordance with the submitted documents, and any additions, revisions or deletions must be approved by the Contracting Officer or his/her authorized representative.

e. **Completion of Work.** Completion of work shall include acceptable performance of all aspects of this contract.

f. **Conditions.**

1. **Pre-Work Conference:** The contractor will be required to attend a pre-work conference, scheduled at least one week prior to beginning work, where the Contractors plan of work, safety plan, security plan, start-up date, and other items included in this contract will be briefly discussed. The contractor will also be required to supply the necessary proof of liability insurance (copy of insurance forms) at that time. In addition, a copy of the Safety Data Sheet will be given to the government at this time and reviewed to ensure contractor compliance. This area is a secure area, and the contractor will need to supply the government with a list of contractor personnel that will be working on-site.

2. **Damages.** The contractor shall be responsible for all damages to government or private property during the course of this contract. The contractor shall have appropriate insurance to cover liability and damages.

3. **Hours and Days of Work.** Work may be conducted between the hours of 6:30 a.m. and 4:00 p.m. Central Time, Monday through Friday (only during daylight hours). No work shall be performed outside of these times, on Saturdays or Sundays, or on federal Holidays, unless approved by the Technical Representative, or as otherwise noted below.

4. **Payment Procedure/Additional Work.** At no time should the contractor do additional work without prior authorization of the Contracting Officer, and no work shall be performed that will cause the Contractor to exceed the contract price. Work performed without a binding contract document authorizing such work shall result in the Contractor not being paid for that work performed. During the course of the contract, any additional work determined to be needed may be requested by the Technical Representative to the Contracting Officer for a Contract Modification.

5. **Contract Start and Completion Dates.** Work under this contract shall begin within 10 calendar days of Notice to Proceed (NTP) being issued and must be completed within 120 calendar days of Notice to Proceed. Additional time may be granted for inclement weather, when coordinated with and approved by the Technical Representative. This includes delay of work that may occur during excessive rainfall or wet periods.

6. **Wage Rates:** Department of Labor wage rates apply to this work and are included. The contractor is required to provide payroll documents for all work performed under this contract.

7. The Contractor shall, at all times prior to delivery, take care to protect and preserve all materials, supplies, and equipment of every description (including material and property which may be Government owned) and all work performed. All reasonable requests of the Contracting Officer or his/her authorized representative to enclose or specially protect such property shall be complied with. If so determined by the Contracting Officer, material, equipment, supplies, and work performed are not adequately protected by the Contractor, such property may be protected by the Government and the cost thereof may be charged to the Contractor or deducted from any payment due.

8. The Contractor will notify the Technical Representative or his/her authorized representative, upon commencement of work activities, and difficulties, interruption, or suspension of work, and when the required work has been completed. The Contractor shall update the Technical Representative, or their authorized representative, no less than once weekly on status of work being done. Work will commence when the funds are allocated and work orders have been received from the Contracting Officer or his/her authorized representative.

9. **Recommended Site Visit:** The Scope of Work only contains approximate measurements for reference. It is recommended that each interested contractor visit the job site and assume responsibility for quantities, materials, critical dimensions and work conditions used to calculate a quote. Contractors will contact the project office for a site visit to be scheduled. The POC's contact information is as follows:

Dan Taylor, Lead Ranger
daniel.r.taylor@usace.army.mil
Barren River Lake
270-646-2055

TP-1.2 CONTRACTOR SUBMITTAL. Unless otherwise specified, the Contractor shall submit the following information to the Technical Representative prior to the pre-work conference for this contract:

a. **Safety Plans.** The Contractor shall submit, for acceptance by the Technical Representative, an accident prevention plan and Activity Hazard Analysis (AHA) in accordance with the requirements of the

Corps of Engineer's Safety and Health Requirements Manual, EM385-1-1, hereinafter referred to as the Safety Manual, current at the time of award.

b. **Certification of Employees Qualified to Administer First Aid and CPR.** The Contractor shall submit proof the appropriate number of employees, as required in the Safety Manual, are certified to administer First Aid and CPR.

TP-1.3 SAFETY.

a. **General Safety.** The Contractor shall comply with the safety standards contained in Corps of Engineers Manual, EM 385-1-1, "Safety and Health Requirements Manual", current at the time of award, as well as all current provisions of the Occupational Safety and Health Act (OSHA).

b. **Safety Manual Requirements.** The Contractor and employees shall comply with all pertinent sections of the Corps of Engineer's Safety and Health Requirements Manual, EM 385-1-1, current at the time of award, and any subsequent revisions. This manual will be available on the Internet at: <https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20EFFECTIVE%2015March2024.pdf>

The Contractor's safety plan must be submitted in writing and can be turned in at the same time as the pre-work conference.

c. **Personal Protective Apparel and Equipment.** Protective apparel and equipment, as identified in the AHA, shall be provided to eliminate or minimize hazards to personnel. As a minimum, each employee shall wear a sleeved shirt, long trousers and safety-toe shoes or boots during all contract work. Hard hats, face shields, safety glasses with side-shields, or goggles, and hearing protection shall be worn by employees when required by safety manual. Fire extinguisher(s) and first aid kit(s) meeting the Safety Manual standards shall also be provided and easily accessible to all employees.

d. **Contractor Employees Certified in First Aid & CPR.** The Contractor shall schedule employees so the appropriate numbers of certified personnel are on duty to administer First Aid and CPR as required by the Safety Manual. Copies of their certification shall be provided before work begins under this contract.

TP-1.4 ACCIDENT REPORTING. The Contractor shall maintain accurate accident records and report accidents as prescribed by the Technical Representative. Accidents shall be reported within 24 hours of occurrence, and all serious accidents (those resulting in death or injury requiring medical attention or lost time) shall be reported immediately.

TP-1.5 DAMAGE REPORTS. In all instances where Government property, equipment, natural features, landscape, or trees are damaged by contract employees, an immediate notification shall be made to the Technical Representative. A full report of the incident and extent of such damage shall be submitted to the Technical Representative within two working days of occurrence, excluding weekends and holidays.

TP-1.6 CONTRACT EMPLOYEES. All contract employees shall conduct themselves in a proper and courteous manner at all times. Contract employees shall comply with all provisions of Title 36, Chapter III, Part 327, CFR and obey all posted signs and regulations in the performance of the work under this contract. Being under the influence of or consuming alcoholic beverages or controlled substances by the Contractor or employees while on duty is prohibited.

TP- 2.1 SPECIAL REQUIREMENTS:

a. Security

1. General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor

employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures—this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

2. Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-III") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.

3. Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

4. Escorting in classified and/or sensitive areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.

5. Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov/>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are

with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

SUPPLEMENTAL SECURITY REQUIREMENTS

All Contractors and subcontractor employee(s) working on this contract who require access to any Louisville District Lake Projects and Lock and Dam Projects shall receive authorization to be on site at these facilities based upon a favorable background investigation in accordance with "Homeland Security Presidential Directive 12: Policy for a Common Identification Standard for Federal Employees and Contractors" (HSPD 12). The Louisville District Security Management Office shall submit contractor(s) personal information to complete the basic background investigation in order to make a recommendation to the Contracting Office of an employee's suitability for work on Government property. The Procuring Contracting Officer (PCO) has the right to deny any contractor or subcontractor employee from working on the contract based upon the results of the background investigation provided by the Louisville District Security Office. The Government, Contractor, and subcontractors shall not permit any employee(s) access to drawings, blueprints, records, photos, sites, or projects until the Louisville District Security Management Office has completed an Operations Security (OPSEC) review of such items and determined they can be released.

FOR ALL LOUISVILLE DISTRICT CONTRACTS:

Contractors shall submit a complete investigation packet for each contractor and subcontractor employee to the Louisville District Security Management office within 10 working days after award of any contract, or prior to the individual being permitted access to Louisville District facilities.

The Contractor must also provide the following: (1) Name of the Contract Specialist with whom he/she is working, (2) Project Name, (3) Contract Number (4) Task Order Number when applicable, and (5) US Citizens Security Access Form or Pre-Bid/Site Visit Form; each employee working on site must have a background investigation form submitted directly to the Louisville District Security Office.

The Contractor must provide a full legal name, complete SSN#, Date of Birth, Place of Birth (City and State) and Driver's license number if available. It is the Contractor's responsibility to ensure the above information is accurate and legible, otherwise delays may occur.

Contractors shall have background checks completed for their employees annually in the case of Contracts with an initial period of performance (POP) greater than 1 year and those Contracts with Options or Modifications Which Extend the POP beyond 1 year. For instance, if the employee was cleared in May of 2022, they shall be cleared again in May of 2023. It is the Contractor's responsibility to ensure that each employee's security is up to date. Failure to comply may lead to possible removal from the project/jobsite.

The Contractor must ensure if new employees are brought in to work on an existing Contract with the U.S. Army Corps of Engineers (USACE), they must process the employee through the Louisville District USACE Security Office for background purposes.

FOR CONTRACTORS REQUIRING DOD COMMON ACCESS CARDS (CAC)

The documents listed below are required:

SF 85, Questionnaire for Non-Sensitive Positions (see <http://www.opm.gov/forms/> to print form).

Fingerprints are captured electronically at the closest Army Recruiting Station to the contractor's home of record or at the USACE, Louisville District Security Office.

Contractor shall report any changes in personnel, or at any time conditions change at least 5 working days prior to individual(s) need to have access to the site. The Contractor shall provide the same information as listed above for all new employees.

Following submission of paperwork, the Louisville District Security Office will conduct an initial criminal check based upon the information provided. If there are no issues, the Louisville District Security Office will make recommendations to the PCO or their Designated Representative. The Louisville District Security Office cannot give approval due to unfavorable report(s). The Louisville District Security Office shall coordinate with Office of Counsel and will jointly make recommendations to the PCO and/or the Designated Representative should a background investigation come back with derogatory information. The PCO will make the determination whether to allow the Contractor personnel to work on the site based on Security and Office of Counsel recommendations, and the PCO will advise the Contractor of the decision.

FOREIGN NATIONALS

The Contractor shall provide the package listed above, as well as additional materials noted below for all Foreign Nationals. The Contractor is to expect additional time in the approval process for all Foreign Nationals due to the level of review and elevation of the review to Headquarters staff to complete. All Foreign Nationals must comply with the following paragraph:

In accordance with Engineering Regulation 380-1-18, "Technology Transfer, Disclosure of Information and Contacts with Foreign Representatives" dated 1 August 1996, Section 4, all foreign nationals who work on Corps of Engineers' contracts shall be approved by the Headquarters US Army Corps of Engineers (HQ USACE) Foreign Disclosure Officer before beginning work on this contract; this regulation includes subcontractor employees. The Contractor shall submit to the Security Management Office, the names of all foreign nationals proposed for performance under this contract, along with documentation to verify legal admittance into the United States. Such documentation shall include at least one of the following: a U.S. passport, Certificate of U.S. Citizenship (INS Form N-560 or N-561), Certificate of Naturalization (INS Form N-550 or N-570), Alien Registration Card with photograph (INS Form I-151 or I-551), Employment Authorization Card (INS Form I-688A), etc.

In order to assure forms are properly completed, and to minimize time delays, the Contractor is encouraged to work closely with the Louisville District Security Office. The Government will return for correction incomplete forms, illegible forms, etc. which will delay the contractor / subcontractor from beginning work.

Security requirements are subject to change in accordance with HSPD-12, Office of Personnel Management, regulation or policy changes, etc. The Government shall add any changes to security requirements by modification to the contract.

The Contractor shall contact the Louisville District Security Office by phone, letter, or email at the following numbers/addresses:

CELRL-SM
600 Martin Luther King Jr. Pl Louisville, KY 40202

Primary Email: DLL-CELRL-Security-SM@usace.army.mil

Alternate (if no response in 72 hours):

James R. Milner, phone (502) 315-6916; James.R.Milner@usace.army.mil

Jason Almodovar, phone (502) 315-6754; Jason.Almodovar@usace.army.mil

b. **Payment:** Payment will be made by Electronic Funds Transfer (EFT), upon acceptance of the completed work and providing final invoice and labor records.

c. **Qualifications:** The contractor shall have at least five (5) years' experience in the requirements for this Scope of Work.

TP-3.1 GENERAL SPECIFICATIONS:

a. CLIN 0001 (Base): Tower Bridge Spalling Repair and Sealing / Stilling Basin Wing Walls Platform Sealing

The work will consist of the following methods as specified herein for CLIN 0001 (Base):

Tower Bridge Spalling Repair and Sealing (Map 1):

1. **The Contractor shall ensure access to the Control Tower is available throughout the duration of the work on the tower bridge to ensure continuity of operations of the dam.** The Contractor shall remove all loose sections of concrete in the 16' long by 12' wide damaged area of the tower bridge (see Exhibits 1-4). The area shall be prepared per manufacturer's specifications to ensure proper adhesion and setting of the spalling repair. The product to be applied for the spalling repair shall meet or exceed the specifications in the technical data sheet, such as Dayton Superior HD50 (horizontal mortar repair).
2. Once the cure time has been achieved on the spalling repair area, the remaining tower bridge surface shall be prepared with a product that meets or exceeds the specifications in the technical data sheet, such as Smith's Green Clean Pro. The contractor shall steam pressure wash all surfaces to be treated to ensure they are free of any foreign contaminants. The hot water pressure washer shall be at least 3,000PSI and have a temperature rating up to 210°F. Once the surfaces have been cleaned and free of foreign material, the surface shall be blown dry and cracks shall be blown dry with compressed air. The concrete surfaces will then be coated with a healer/sealer product per manufacturers recommendations. This product shall meet or exceed the specification in the technical data sheet, such as Dayton Superior Bridge Seal 75% (penetrating epoxy healer/sealer). There are nine (9) movement marker survey pins that are installed in the bridge deck (pins will be identified by the TPOC prior to work commencing). These pins shall be covered and not disturbed in any way to change the static elevation of the pin's surface. The areas to be prepared and sealed are as follows:
 - a. Bridge Deck – approximately 406' long x 12' wide (coverage will extend 8" vertically over the edge of the bridge deck).
 - b. Abutment Curb & Seal – Seal is approximately 2" wide x 14' long / Curb is approximately 1' wide x 54' long (extends down each side of tower bridge access road)
3. The 2 expansion joints at each end of the bridge shall have the existing joint sealant removed. The joints will then be prepared per manufacturers specifications to ensure proper sealing of the two joints. The surface must be clean, dry, free of grease and oil, or any other foreign material to ensure proper adhesion. The joints need to be filled with backer rod to ensure proper filling on the joint. The joint sealer will be left 1/8" below grade to minimize tear stress on the adhesion edges in the joint. The backer rod shall be left at a depth to ensure at least 1/2" of expansion joint sealant will be applied. This product shall meet or exceed the specification in the technical data sheet, such as Sikaflex 2cSL (two component, self-leveling, polyurethane elastomeric sealant). The two joints are each approximately 2" wide x 12' long.